the Roman *universitas* may have been—and Dr Gierke is for pinning the Roman jurists to Savignianism—our German Fellowship is no fiction, no symbol, no piece of the State's machinery, no collective name for individuals, but a living organism and a real person, with body and members and a will of its own. Itself can will, itself can act; it wills and acts by the men who are its organs as a man wills and acts by brain, mouth and hand. It is not a fictitious person; it is a *Gesammtperson*, and its will is a *Gesammtwille*; it is a group-person, and its will is a group-will[1].

This theory, which we might call Realism, may seem to carry its head among the clouds, though no higher perhaps than the Fiction Theory; but a serious effort has been made to give it feet that walk upon the earth. In one long book[2] Dr Gierke has in great detail argued his case throughout the whole domain of practicable modern law, contending, not indeed that all German 'authority' (as an English lawyer would say) is on his side, but that he has the support of a highly respectable body of authority, express and implied, and that legislatures and tribunals fall into self-contradiction or plain injustice when they allow themselves to be governed by other theories. Nothing could be more concrete than the argument, and, though it will sometimes shew an affection for 'the German middle age' and a distrust of ancient Rome, it claims distinctively modern virtues: for instance, that of giving of the shareholder's 'share' the only lawyerly explanation that will stand severe strain. Then in another book our author has been telling the history of German Fellowship Law[3].

Let us try to imagine—we are not likely to see—a book with some such title as English Fellowship Law, which in the first place

[1] The works of Dr Gierke which deal with this matter are (1) Das deutsche Genossenschaftsrecht, whereof three volumes were published in 1868, 1873, and 1881; (2) Die Genossenschaftstheorie und die deutsche Rechtsprechung, 1887; (3) The first volume of Deutsches Privatrecht, 1895, which contains a more succinct and more recent statement; (4) The monograph on Johannes Althusius, 1880, which should be well known to all students of political theory. Those who would rather begin their study of the realistic theory in French than in German may be sent to A. Mestre, Les Personnes Morales, 1899. French lawyers have been conservative, and Savignianism was in harmony with the spirit of the Codes; nevertheless the doctrine of the real group-will is finding disciples. The only English statement that I have seen of this theory is by Ernst Freund, The Legal Nature of Corporations, University Press, Chicago, 1897.

[2] This is the Genossenschaftstheorie of 1887.

[3] This is the Genossenschaftsrecht of 1868—73—81.